

Arvind vs Lalia S/O Pancha)Dead) Thr. Legal Heirs ... on 20 June, 2025

Author: Gurpal Singh Ahluwalia

Bench: Gurpal Singh Ahluwalia

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
SA No. 407 of 2017
(ARVIND Vs LALIA S/O PANCHA)DEAD) THR. LEGAL HEIRS BHA

Dated : 20-06-2025

Shri B. Raj Pandey- Advocate for appellant through VC.
Shri Madhur Bhargava- Advocate for respondents No.1 and

Shri A.K. Nirankari- Government Advocate for respondent/State.

Heard on IA. No.2886/2020.

This application under Order 22 Rule 4 CPC has been filed for substitution of legal representatives of respondent No.3-Samratia who according to appellant has expired on 02.10.2019.

It is the case of appellant that information regarding death of respondent No.3 Samratia was given by his counsel on 26.08.2020. Accordingly, application under order 22 Rule 4 CPC was filed on 15.10.2020. No application under Order 22 Rule 9 CPC read with Section 5 of Limitation Act was filed. However, by treating IA. No.2886/2020, an application under Order 22 Rule 4 CPC, as a composite application under Order 22 Rule 4 CPC, Order 22 Rule 9 read with Section 5 of Limitation Act, delay in filing application for setting aside abatement of appeal against respondent No.3-Samratia is hereby condoned and for similar reason, the abatement of appeal against respondent No.3- Samratia is hereby set aside and legal representatives of respondent No.3-Samratia are taken on record.

Let necessary amendment be carried out within three working days.

2 SA-407-2017 Heard on the question of admission.

The appeal being arguable is admitted for final hearing on the following substantial questions of law:-

- (i) Whether the Court below has misinterpreted the provisions of Section 16 of the Hindu Marriage Act ?

(ii) Whether the Court below failed to see that no one can relinquish his title in property without any registered deed of conveyance?

Since respondent Nos. 1 & 2 are being represented by their counsel, therefore, it is not necessary to issue notice to them.

However, on payment of process fee by registered mode payable within seven working days, Office is directed to issue notices to respondent Nos. 3 to 8.

Since the appeal has already been admitted, therefore, interim order dated 23/8/2017 is hereby affirmed.

(G. S. AHLUWALIA) JUDGE (and)